



HEMANT CHAWLA

JUDGEMENT DAY: Chief Justice Balakrishnan

SUPREME COURT, DELHI

A CALL TO HONOUR

Justice should not be done in a hurry. As they say, she is to be wooed through slow advances. Despite sitting pretty on many ageing case files, the Supreme Court has given the common man the protective cloak of the Constitution and often stood as a barrier to intrusions from the executive and the legislature. At the inaugural sitting of the Supreme Court, the first chief justice of India H.J. Kania, had said: "It'll be our endeavour to interpret the Constitution not as a rigid body, but as a living organism, having with itself the power of self-government. The Supreme Court, however, under the colour of interpretation, cannot alter or amend law." But subsequent years have witnessed a different story.

The controversies began early enough, in 1951, when the then prime minister Jawaharlal Nehru moved an amendment to change the principle on which compensation would be payable for large acquisitions of public property for social engineering schemes. Moving this amendment, he said: "No Supreme Court and no judi-

ciary can stand in judgement over the sovereign will of Parliament representing the will of entire community." The Patna High Court struck down the Bihar Land Reforms Act and Nehru responded by bringing forth the first amendment which placed land reforms legislation beyond the pale of fundamental rights.

Ever since, the Supreme Court has been called in to adjudicate in all borderline policy issues, whether it is bank nationalisation or the Mandal Commission recommendations, the Shah Bano case or amendments that change basic structure of the Constitution in its attempt to "ensure the rights of the citizens". If it has been controversial—for instance, in its role in allowing the Maintenance of Internal Security Act during the Emergency—it has also been at the forefront of social inclusion, whether it was justice Fathima Beevi becoming the first woman to be appointed to the Supreme Court in 1987 or K.G. Balakrishnan becoming the first Dalit chief justice of India in 2007. The apex court still remains the ultimate powerhouse of justice.

by Shafi Rahman

"The Supreme Court is the guardian of the fundamental rights of the people."

K.G. BALAKRISHNAN, CHIEF JUSTICE OF INDIA

IN ALL FAIRNESS

Two days after India became a sovereign democratic republic, the Supreme Court was inaugurated on January 28, 1950. It functioned in the Parliament building, which also hosted the Council of States and the House of the People. The apex court remained there till it got its present premises at Tilak Marg in the Capital in 1958.

